



**NATIONAL INVESTIGATION AGENCY
FIRST INFORMATION REPORT
(Under Section 154 Cr. P.C)**

Book No. 01

Sl. No. 336

1. District: New Delhi

PS: NIA, New Delhi

Year: 2024

FIR No. RC-05/2024/NIA/DLI

Date: 30.04.2024

2. Acts & Sections:

- (i) **Indian Penal Code, 1860** : Sections 147, 148, 149, 186, 353, 332, 333, 326, 307, 302
- (ii) **Arms Act** : Sections 25 & 27
- (iii) **West Bengal Maintenance of Public Order, 1972** : Section 9.
- (iv) **Explosive Substances Act, 1908** : Sections 3 & 5.

3. (a) Suspected Offence:

On 20.09.2018, 1510 hours PS Islampur received information that the students of Darivit High School are agitating against the appointment of two new teachers of Urdu and Sanskrit languages. While the police was pursuing the agitating mob to open the gate, the unruly mob consisting of approximately 500 students and 1000 other persons armed with deadly weapons, lathi, swords, bombs and firearms attacked the police party. As a result, several persons including police personnel received severe injuries. Out of them, two persons Rajesh Sarkar and Tapos Burman succumbed to their injuries. The mob had also damaged three police vehicles.

(b) **Day:** Thursday **Date:** 20.09.2018 **Time:** 15:10 hrs

(c) Information received at PS NIA:

Vide Government of India, Ministry of Home Affairs, CTCR Division Order F. No. 11011/45/2024/NIA dated 29.04.2024 to take further action.

GD Entry No. 07

Date: 30.04.2024

Time: 1900 hrs.

4. Type of information: Written

5. Place of Occurrence:

- a) **Direction & Distance from PS** –Approx. 12 km South/East from PS.
- b) **Address:** Darivit
- c) **In case, outside the limit of this Police Station, then Name of PS:**
Within limits

6. Complainant /Informant

- (a) **Name** : Shri Vipul Alok
- (b) **Father's Name** : N/A
- (c) **Date of Birth/Age** : N/A
- (d) **Nationality** : Indian
- (e) **Passport No:** N/A **Date of Issue** : N/A **Place of Issue** : N/A
- (f) **Profession** : Under Secretary to the Government of India.
- (g) **Address** : CTCR Division, MHA, North Block, New Delhi.

7. Details of Known/ Suspected/Unknown accused with full particulars (Attached separate sheet, if necessary):-

- (i) Nishi Paul, S/o Not known, President, Darivit High School Managing Committee A/P Palpara, College More,
- (ii) Jiban Majumdar, S/o Sadhan Majumdar of Darivit,
- (iii) Arun Lal Singha, S/o Kader Nath Singha of Birbaldangi,
- (iv) Porkash Majumder, S/o Gowranga Majumder of Darivit, Kalinagar Colony,
- (v) Nirmal Sikari, S/o Anil Sikari of Sukhanivita,
- (vi) Poran Roy, S/o Lt. Banirmali Roy of Darivit,
- (vii) Tapash Majumder, S/o Jiban Majumder of Darivit,
- (viii) Nikhil Sikdar, S/o Lt. Surendra Nath Sikhdar of Darivit/Mathpara,
- (ix) Biswanath Biswas, S/o Mahindra Biswas of Darivit/ Mathpara,
- (x) Bankim Majumdar, S/o Bholanath Majumdar of Darivit/Mathpara,
- (xi) Dino Majumdar of Darivit,
- (xii) Dilip Roy of Darivit,
- (xiii) Subash Majumdar, S/o Amar Ch. Majumdar of Darivit,
- (xiv) Nirmal Majumdar, S/o Amar Ch. Majumdar of Darivit, all of Islampur PS and 1500 others

8. Reasons for delay in reporting by the complainant/informant: No delay.

9. Particulars of Properties Stolen: -N/A-

10. Total value of Property Stolen. - -N/A-

11. Inquest Report/U.D. Case No. if any. -N/A-

12. First Information contents (Attach separate sheet, if required)-

The Central Government has received information regarding registration of FIR No. 611/2018 dated 20.09.2018 at PS Islampur, District Uttar Dinajpur, West Bengal under sections 147, 148, 149, 186, 353, 332, 333, 326, 307, 302 of Indian Penal Code r/w sections 3/5 of Explosive Substances Act, sections 25 & 27 of Arms Act and section 9 of West Bengal Maintenance of Public Order Act relating to agitation by the students of Darivat High School under the jurisdiction of PS Islampur, on 20.09.2018, against the appointment of two new teachers of Urdu and Sanskrit languages, which led to death of two persons and injuries to several persons including police personnel;

And whereas, in Writ Petitions bearing nos. WPA-20733 of 2018 (CAN 1 of 2021) titled Nilkamal Sarkar vs State of West Bengal & Ors., WPA-20734 of 2018 (CAN 1 of 2021) titled Sri Badal Barman vs State of West Bengal & Ors. and WPA-20938 of 2018 titled Subhash Sarkar vs State of West Bengal & Ors., the Hon'ble High Court of Calcutta vide its order dated 10.05.2023 has directed that the investigation into the instant case be transferred to National Investigation Agency;

Now, therefore, in pursuance of the order dated 10.05.2023 of the Hon'ble High Court, Calcutta and in exercise of the powers conferred under sub-section (5) of section 6 read with section 8 of the National investigation Agency Act, 2008, the Central Government has directed the National Investigation Agency to take up investigation of the aforesaid case.

The MHA order No. 11011/45/2024/NIA dated 29.04.2024, the copy of the State FIR No. 611/2018 dated 20.09.2018 and the copy of order of Hon'ble High Court, Calcutta dated 03.04.2024 are attached as **Annexure-A, Annexure-B and Annexure-C** respectively.

13. **Action taken:** Re-registered the case as RC-05/2024/NIA/DLI dated 29.04.2024 and directed Shri Bidyadhar Behera, DySP, NIA BO Kolkata to take up the investigation as the Chief Investigation Officer (CIO).

14. **Signature/Thumb Impression of the complainant/informant**


Signature of Officer-in-Charge
डॉ. जया रॉय, भा.पु.स./Dr. JAYA ROY, IPS
पुलिस स्टेशन, NIA, New Delhi
राष्ट्रीय अन्वेषण अधिकरण
National Investigation Agency
गृह मंत्रालय, भारत सरकार/MHA Govt. of India
नई दिल्ली/New Delhi

15. **Date and time of dispatch to the Court**

____/____/____


Signature of recording Officer With date

पुलिस अधीक्षक/Superintendent of Police
राष्ट्रीय अन्वेषण अधिकरण
National Investigation Agency
गृह मंत्रालय, भारत सरकार/MHA Govt. of India
नई दिल्ली/New Delhi

Enclosures:

- (i) Government of India, Ministry of Home Affairs, CTCR Division Order F. No. 11011/45/2024/NIA dated 29.04.2024 (**Annexure-A**).
- (ii) Copy of FIR no. 611/2018 dated 20.09.2018 at PS Islampur, Distt- Uttar Dinajpur, West Bengal (**Annexure-B**).
- (iii) Copy of order of Hon'ble High Court, Calcutta dated 03.04.2024 (**Annexure-C**).

Copy to: No. - 6527 to 6531

1. The Ld. Special Judge, NIA Special Court, Kolkata.
2. The Joint Secretary, CTCR Division, MHA, North Block, New Delhi.
3. The Director General of Police, West Bengal.
4. The IG (NEZ), NIA Hqrs, New Delhi.
5. Shri Bidyadhar Behera, DySP/CIO, NIA Kolkata.
6. Crime Record Section, NIA Hqrs, New Delhi.
7. Crime Section, NIA, Kolkata.

The following information was obtained from the Bureau of Investigation of the Federal Bureau of Investigation of the Department of Justice, Washington, D. C. on the subject of the above captioned case:

No. 11011/45/2024/NIA
Government of India
Ministry of Home Affairs
CTCR Division

DG/NIA/MHA
New Delhi

North Block, New Delhi
Dated, the 29th April, 2024

ORDER

Whereas, the Central Government has received information regarding registration of FIR No. 611/2018 dated 20.09.2018 at PS Islampur, District Uttar Dinajpur, West Bengal under sections 147, 148, 149, 186, 353, 332, 333, 326, 307, 302 of Indian Penal Code r/w sections 3/5 of Explosive Substances Act, sections 25 & 27 of Arms Act and section 9 of West Bengal Maintenance of Public Order Act relating to agitation by the students of Darivat High School under the jurisdiction of PS Islampur, on 20.09.2018, against the appointment of two new teachers of Urdu and Sanskrit languages, which led to death of two persons and injuries to several persons including police personnel;

And whereas, in Writ Petitions bearing nos. WPA-20733 of 2018 (CAN 1 of 2021) titled Nilkamal Sarkar vs State of West Bengal & Ors., WPA-20734 of 2018 (CAN 1 of 2021) titled Sri Badal Barman vs State of West Bengal & Ors. and WPA-20938 of 2018 titled Subhash Sarkar vs State of West Bengal & Ors., the Hon'ble High Court of Calcutta vide its order dated 10.05.2023 has directed that the investigation into the instant case be transferred to National Investigation Agency;

Now, therefore, in pursuance of the order dated 10.05.2023 of the Hon'ble High Court, Calcutta and in exercise of the powers conferred under sub-section (5) of section 6 read with section 8 of the National Investigation Agency Act, 2008, the Central Government hereby directs the National Investigation Agency to take up investigation of the aforesaid case.



(Vipul Alok)

Under Secretary to the Government of India

To:-

- ✓ 1. Director General, National Investigation Agency, CGO Complex, Lodhi Road, New Delhi
- 2. The Chief Secretary, Government of West Bengal
- 3. DGP, West Bengal

OFFICE OF THE DG/NIA

Diary No.....1464.....

Date ...29.04.2024

721/164/1
38/4/24

54/Ais/11
30/4/24

FIRST INFORMATION REPORT

13.01.19

21506

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Form of a cognizable crime reported under section 154 Cr. P.C. at P.S.

Sub-Div. Islampur P.S. Islampur Year 2018 FIR No. 511/18 Date 20/9/18

Sections 332/333/334/302 IPC R/W Sec 3/5 of E.S. Act - Su 25/27 from P.S.

Other Acts & Sections

Serial Diary Reference: Entry No. 882 Time at 23.35 hr

Occurrence of Offence: Day Thursday Date 20.9.18 Time at 15.10 hr

Information received Date 20.9.18 Time at 14.05 hr

No. 875 at the Police Station:

Information: Written/Oral

Place of Occurrence: (a) Direction and Distance from P.S. Approx. 12 km South/East from P.S.

Address

Case outside limit of this Police Station, then the name of P.S.

Name/Informant:

Name Rajan Chetani

Father's/Husband's Name Inspector-in-Charge

Date/Year of Birth

Nationality

Address P.S. Islampur Dist. Urban Sirajpur

Details of Known/suspected/unknown/accused with full particulars

Attach separate sheet, if necessary

Reasons for delay in reporting by the Complainant/Informant

Magamdas of Sonirith

of Binbadanga

of Sonirith

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I, Rajen Chettri, I/C Islampur PS do hereby lodge this sue-motto written complaint against 1) Nishi Paul s/o Not known , President, Darivit High School Managing Committee A/P Palpara, College more, 2) Jiban Majumdar s/o Sadhan Majumdar of Darivit 3) Arun Lal Singha S/o- Kader Nath Singha of Birbaldangi 4) Porkash Majumder S/o- Gowranga Majumder of Darivit Kalinagar Colony 5) Nirmal Sikari S/o Anil Sikari of Sukhanivita 6) Moran Roy S/o- Lt. Banirmali Roy of Darivit 7) Tapash Majumder S/o Jiban Majumder of Darivit 8) Nikhil Sikdar s/o Lt Surendra Nath Sikhdar of Darivit/Mathpara, 9) Biswanath Biswas s/o Mahindra Biswas of Do, 10) Bankim Majumdar s/o Bholanath Majumdar of Do, 11) Dino Majumdar of Darivit, 12) Dilip Roy of Do, 13) Subash Majumdar s/o Amar Ch Majumdar of Do, 14) Nirmal Majumdar s/o Amar Ch Majumdar of Do, all of Islampur PS and 500 others

to the effect that today i.e 20/09/18 at about 14:05 hrs an information was received from Islampur PS that an agitation has been started at Darivat High school under Islampur jurisdiction by the students of that school regarding appointment of one new Urdu language teacher at that school. The matter has been diarised vide Islampur PS GDE no 875 , dtd- 20/09/18. I informed the matter to my superiors and directed Spl RT Mobile II officer SI Samarendra Nath Saha with C/60 Sushil Oraon and C/192 Chittoranjana Mondal, and Spl RT Mobile I officer ASI Bhupendra Nath Barman with Const/ 100 Anil Roy and C/673 Chandan Barman to look into the matter. On reaching Darivit High School SI Samarendra Nath Saha informed that the situation at Darivit is tense have wrongfully confined the teachers inside the school premises by locking the main gate of the school and an unruly mob has assembled at the premises of Darivit High school and more reinforcement are required to maintain L/O as the matter may take a communal turn. I informed the matter to my superiors and myself along with SI Pranab Sarker, SI Safiquel Islam, SI Ejabul Hoque, SI Dipankar Ghosh, SI Manik Goswami, Const/319 Parimal Adhikary, Lady Const/1090 Nilu Das, Lady Const/1052 Manoshi Hasda, Lady Const/1056 Rakhi Sarker, all of Islampur PS, Const/721 Alok Sarker, Const /831 Sk Sirajul Ali, Const /624 Rejaul Karim, Const /815 Ashim Bosak, Const /408 Goutam Goswami, all of Islampur E.F Line left for Darivit to maintain L/O vide vide Islampur PS GDE no 877, dt-20/09/18 in Govt Vehicle.

On arrival at Darivit High school I could see that about 500 students and a huge unruly mob (approx 1000/= persons) had gathered at the premises of the school and had restrained the teachers and staffs at the school. The students and the mob restrained us from entering the premises of the school but we managed to enter the school compound. It was learnt that there was a strong resentment among the students regarding the appointment of one Urdu and one Sanskrit teacher in the school. On 18.09.18 the students of Darivit High School had put up an agitation in the school against the appointment of one Urdu and one Sanskrit teacher. On the same day Sri Rabindra Mandal, D.I of Schools, Uttar Dinajpur had assured that the Urdu PG teacher and Sanskrit PG teacher that has been appointed for the school will be withdrawn as there is no post in HS Section. Today i.e 20/09/18 an e-mail was received by the Headmaster of the school from D.I of Schools, Uttar

Y. Mr
20/09/18

Signature of Officer

3

Islampur to appoint 02 teachers in Urdu and Sanskrit subject without consulting with the concerned authorities. Today the Urdu and Sanskrit teachers came to the school and joined their duties as per appointment of D.I of Schools. Over this the students became agitated and protested regarding their appointment and joining.

On my arrival I ordered the unruly mob assembled outside the school premises to disperse and started appealing to the agitating students (numbering about 500) who were demonstrating in front of the school gate by locking the teachers inside the school, to withdraw their agitation and sit for negotiations with the concerned authorities for redressal of their demands but the students were adamant and paid no heed to my requests. Further a portion of the students from the main group split up and came on the Darivit Sonamati Road and set up a road blockade in two places. I along with my officers further made several appeals to the agitating students but it fell on deaf ears, and the unruly mob that was supporting the agitating students started again reassembled on all the sides of the school being armed with deadly weapons. I ordered the unruly mob assembled outside the school (numbering about 1000) being armed with lathi, swords and other deadly weapons to disperse but they did not listen to my order and started mobilising more people.

In the meantime received an information that the members of another group have also started to mobilise their people at Golapara, Amoljhari a few kilometres away from Darivit, to counter the agitation at Darivit leading to the apprehension of a serious communal conflict.

Then at about 1510 hrs the situation further aggravated when one teacher of the school who was kept confined inside the school along with the other teachers came to the gate and told me that he was feeling very unwell and needs urgent medical help. The main gate of the school was locked and about 500 students were demonstrating outside the gate. I repeatedly appealed to the students to open the main gate so that the teacher who was unwell could be taken to the hospital for his medical treatment but the agitating students were adamant and determined not to open the gate and allow the sick teacher to come out. After a lapse of about 20 minutes the teacher became seriously ill and fell down on the ground in unconscious state inside the school gate, and he needed immediate medical help. I along with my officers again urged the students to open the gate to provide medical help to the seriously ill teacher who was lying unconscious, but the students were still adamant. While I along with my officers were engaged in pursuing the students to open the gate the unruly mob which had gathered on all the sides of the school being armed with deadly weapons suddenly started brick batting at the police and attacked the police personnel with lathi, sword, bombs and firearms as a result of which Const/319 Parimal Adhikary of Islampur PS received severe gun shot injury, Const/1090 Nilu Das received severe head injury, Const/ 60 Sushil Orawn received serious head injury, and SI Samarendu Nath Saha, SI Ejabyul Hoque, Const/673 Chandan Barman, Const/624 Rejaul Karim, Const/815 Ashim Bosak and Const/408 Goutam Goswami received injuries on their person. The unruly mob

25/5/18

Inspector of Police
Islampur

(4)

also caused extensive damage to the three Police Vehicles bearing Reg No WB 92A/6981, WB 60H/0134, WB 59/6809 which were parked outside the school. The unruly mob and a section of the students tried to forcibly enter the school with an intention to assault and kill the teachers and other staff member present inside.

Finding no other alternative in the exercise of the right of private defence the police party had to resort to the use of non lethal weapons to disperse and contain the unruly mob and to bring the situation under control. Const/184 Pralab Mondal of Islampur EF Line fired 08 L.R. shells, C/815 Ashim Basak fired 10 rounds from the P.A.G and C/251 Biswajit Ghosh fired 05 Tear Gas Smoke Grenade and 05 Stun Grenade and Const/ 100 Anil Roy fired one round of plastic bullet in the air to disperse the unruly mob. After that we rescued the teachers and staff of the school along with the teacher who was seriously ill and brought them to a safe location near Golapara. Thereafter I arranged to shift the injured Police personnel and the sick teacher to Islampur Sub Divisional Hospital for their medical treatment. From Islampur Hospital Const/319 Parimal Adhikary was referred to Anandalok Narsing Hospital, Siliguri with grievous head and gunshot injuries. Lady Const/1090 Nilu Das has been admitted at Islampur S.D hospital, Const/ 60 Sushil Orawn received serious head injury, SI Samarendu Nath Saha, SI Ejabul Hoque, Const/673 Chandan Barman, Const/ 100 Anil Roy, Const/624 Rejual Karim, Const/815 Ashim Bosak, Const/408 Goutam Goswami had also received serious injuries on their person.

Later it was learnt that one injured person namely Rajesh Sarkar s/o Nil Kamal Sarkar of Darivit, PS -Islampur, Dist-Uttar Dinajpur was brought dead at Islampur S.D hospital another injured person Tapos Barman s/o Badal Barman of Darivit Islampur who was brought to Islampur Hospital, has been referred to NBMC&H Siliguri for his medical treatment for the injuries. Another injured patient namely Biplab Sarkar s/o Gobinda Sarkar of Darivit, Islampur is admitted at Islampur SD Hospital undergoing medical treatment.

Over this suo motto complaint I am registering Islampur PS case no 611/18 dtd- 20/09/18 u/s 147/148/149/186/353/332/333/326/307/302 IPC r/w Sec 3/5 of E.S. Act, Sec 25/27 Arms Act and 09 MPO Act against the accused persons noted above and 1500 others, and endorsed the case to SI R Subba for investigation.


Rajen Chettri
I/C Islampur PS
Dist-Uttar Dinajpur

03.04.2024
Item No.6
gd/ssd

MAT/924/2023
IA NO: CAN/1/2023
STATE OF WEST BENGAL AND ORS.
VS
NILKAMAL SARKAR AND ORS.

Mr. Kishore Datta, Id. Advocate General,
Mr. Milon Mukherjee,
Ms. Ipsita Banerjee,
Mr. Debangshu Dinda
..for the Appellants.

Mr. Partha Ghosh,
Mr. Alma Kumar Datta,
Ms. Simran Sirela,
Mr. Debashis Das
..for the Respondent/Writ Petitioner.

Mr. Arun Kumar Maiti,
Mr. Bhaskar Prosad Banerjee
..for NIA.

1. We have heard the learned Advocate General and also the learned advocates for either of the parties.

2. The question to be decided in this appeal is with regard to the findings recorded by the National Human Rights Commission and whether the findings so recorded in a report drawn by NHRC could have been referred to and be made the basis for transfer of the investigation in the instant case to the National Investigation Agency (NIA).

3. On a prima facie view we opined that though the learned Single Bench in paragraph 47 has dealt with the jurisdiction of NHRC, the fact remains that the report drawn by NHRC continues to remain in

force and has not been scrapped in the matter known to law.

4. Therefore, we are of the prima facie view that there is no error in the order passed by the learned Single Bench in referring to such report to sustain its ultimate conclusion drawn in paragraph 73 of the impugned order.

5. Since other legal issues have also been raised in this appeal, at the instance of the State of West Bengal, we are inclined to entertain this appeal but, however, we are not inclined to grant any order of interim stay of the order and direction issued by the learned Single Bench.

6. Accordingly, the appellants are directed to implement the order and direction issued by the learned Single Bench without loss of time. It goes without saying that such implementation to be done will be subject to the outcome of this appeal. The National Investigation Agency dated 25th May, 2023 has addressed the Additional Director General, CID, Kolkata requesting them to provide certified legible copies of several documents. This request appears to have not been complied with by the Additional Director General, CID, Kolkata and, therefore, we direct that the documents sought for in the letter of the NIA dated 25th May, 2023 be complied with within a week from date. The NIA shall proceed in terms of the directions issued

by the learned Single Bench in paragraphs 73, 74, 75 and 76. In paragraph 77 of the impugned order the appellants/State was directed to pay compensation to the families of the victims both killed and injured in the incident within a time frame. The State shall ensure payment of compensation to the families of the victims both killed and injured at the appropriate rates within three weeks from date.

7. List this appeal under the caption "For Directions" on 15th May, 2024.

(T. S. SIVAGNANAM)
CHIEF JUSTICE

(HIRANMAY BHATTACHARYYA, J.)